

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELORS
EXAMINERS

STATE OF COLORADO

Case No. 2006-005067

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE
APPLICATION TO PRACTICE AS A LICENSED PROFESSIONAL COUNSELOR IN
THE STATE OF COLORADO OF DOREEN M. TAYLOR,

Respondent,

IT IS HEREBY STIPULATED by and between the State Board of Licensed
Professional Counselors Examiners ("Board") and Doreen M. Taylor ("Respondent") as
follows:

1. The Board has jurisdiction over the person of Respondent and the subject matter
of this stipulation.
2. Respondent has never been licensed as a professional counselor in the State of
Colorado.

3. Respondent admits the following:

- a. On or about June 25, 2003, Respondent submitted an application to be a
licensed professional counselor.
- b. On her application, Respondent answered, "no" to question #19 relating
Respondent for failing to disclose two deferred sentence misdemeanors on her
application.
- c. On or about June 30, 2006, the Board initiated a complaint against
Respondent for failing to disclose two deferred sentence misdemeanors on her
application.

4. By virtue of the admissions in paragraph 3 above, Respondent admits, and the
Board hereby finds, that Respondent violated § 12-43-222(1)(g) and (s) C.R.S.

5. The statutory authority of the Board is as follows:

12-43-222. Prohibited activities – related provisions. (1) A person licensed, registered, or regulated under part 3, 4, 5, 6, or 7 of this article is in violation of this article if such person:

(g) Has acted or failed to act in a manner that does not meet the generally accepted standards of the professional discipline under which such person practices. A certified copy of a malpractice judgment of a court of competent jurisdiction shall be conclusive evidence of such act or omission, but evidence of such act or omission shall not be limited to a malpractice judgment.

...

(s) Has resorted to misrepresentation, or deception in applying for or in securing licensure or taking any examination provided for in this article. . . .

6. By virtue of the admissions in paragraph 3 above, Respondent agrees to the following disciplinary sanction that the Board believes necessary to protect the public health, safety, and welfare.

7. Respondent is hereby placed on probation for a minimum of one (1) year commencing from the effective date of this Order and until Respondent has complied with the terms and conditions of this Order. During the probationary period, Respondent agrees to be bound by the terms and restrictions set forth in this Order.

8. During the term of probation, a practice monitor will monitor Respondent's practice. Within 30 days of the effective date of this Order, Respondent shall nominate, in writing, three proposed practice monitors for the Board's approval. Respondent shall include for consideration a current curriculum vita of the proposed monitors and a commitment letter from the prospective monitors stating that s/he has read this Order and understands and agrees to perform the obligations set forth herein. The practice monitor shall meet the following criteria:

a. The practice monitor shall be licensed and currently practicing in the State of Colorado.

b. The practice monitor shall have been licensed in Colorado as a mental health professional for a minimum of five years, and no record of discipline.

c. The practice monitor shall have no current or past financial or personal interest in Respondent or Respondent's practice. This limitation would exclude former employees and business associates.

9. Respondent agrees that the following terms and conditions shall apply with regard to the practice monitoring:

a. Each month the practice monitor shall visit all locations at which Respondent practices to assure that Respondent is practicing in compliance with the practice act, applicable rules and regulations, and this Order. During each visit the practice monitor shall randomly select a minimum of ten (10) patient files and review such files for compliance. The practice monitor shall make reasonable efforts to ensure that Respondent has no notice of which records will be selected for review. The practice monitor is authorized to review all records maintained by Respondent as the practice monitor deems appropriate.

b. The practice monitor shall submit written reports for Board approval. The practice monitor shall submit the first written report to the Board on the fifth day of the first full month after the Board approved the practice monitor. All subsequent reports shall be submitted on the fifth day of each month for the remainder of the probationary period. After submission of the first twelve (12) reports, unless otherwise ordered by the Board, the practice monitor shall submit his/her reports by the fifth day of every third month (i.e. on a quarterly basis) until the practice monitoring is completed.

c. If at any time the Director has questions or concerns regarding the monitoring, the practice monitor agrees to attend any meeting necessary to address the Director's concerns. The Director will give the practice monitor 30 days notice prior to requiring the practice monitor's attendance at a meeting.

d. If at any time the practice monitor believes Respondent is not in compliance with this Order, is unable to practice with skill and safety to her patients, is practicing negligently, or has committed a violation of the practice act or rules and regulations, the practice monitor shall immediately notify the Director, in writing, with an explanation of the reasons for such a conclusion.

e. It is the responsibility of Respondent to insure that all reports by the practice monitor are complete and timely submitted to the Director. Respondent agrees that a failure of the practice monitor to submit timely complete reports may constitute a violation of this Order on the part of respondent. If, in the Director's judgment, the practice monitor fails to perform the functions specified by this Order, the Director may require a new practice monitor to assume the responsibilities specified herein. If for any reason the practice monitor ceases to perform the functions specified in this Order, Respondent shall nominate a new practice monitor to the Director within 30 days.

f. All expenses associated with the practice monitor's obligations and all other expenses incurred by Respondent in order to comply with this Order shall be the sole responsibility of Respondent, and in no way shall they be the obligations of the Director.

10. During the probation period, Respondent must successfully complete 20 hours of Board-approved continuing education courses in addition to any annual amount required to renew Respondent's license. The continuing education courses shall relate to jurisprudence

workshop and Ethics. Respondent shall obtain Board approval of the courses prior to enrolling in each course. Upon completion of a course, the provider is to mail to the Board a certificate of completion. Failure to provide proof of completion shall be deemed a violation of this Order.

11. The following terms and conditions apply to this Order:

a. In the event Respondent relocates to another state at any time during the probationary period, Respondent shall notify the Board of the change of address within 30 days of the effective date of such change.

b. Respondent hereby gives consent to the Board that she may notify the Board, or appropriate counterpart in any state to which Respondent relocates, of the existence of, terms of, and compliance with this Order. _

c. The period of probation is tolled during any time that Respondent is not practicing in this state, and such period of probation shall resume at such time as Respondent resumes practicing in the State of Colorado.

d. The period of probation ordered herein is also tolled during any time period that Respondent is not engaged in the practice of a licensed professional counselor and during any time period that Respondent's practice is not being monitored by a practice monitor in compliance with the terms of this Order.

e. The probationary period ordered herein will be extended for any time period in which Respondent's probation was tolled.

f. If Respondent has complied with all of the terms and conditions ordered herein, at the expiration of the time period specified herein, the Board shall terminate the probation.

12. Within 30 days of the effective date of this Order, Respondent is hereby issued a conditional license to practice pursuant to the terms in this Order that the Board believes necessary to protect the public health, safety, and welfare. An unrestricted license will be issued to Respondent upon completion of all terms of this Order.

13. Any violation of this Order shall, at the discretion of the Board, constitute a violation of the practice act, and upon proof of violation, the Board may discipline Respondent in accordance with § 12-43-222, C.R.S. This Order shall be admissible as evidence at any hearing held to determine whether a violation of this Order or the practice act has occurred. In the event that an alleged violation of this Order is not proven, the Board shall take no disciplinary action and this Order shall continue in full force and effect. The pendency of any disciplinary action pursuant to this Order shall not affect any obligation of Respondent to comply with the terms of this Order.

14. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing pursuant to § 12-43-224, C.R.S., and hereby waives those rights and further waives the right to appeal or contest this

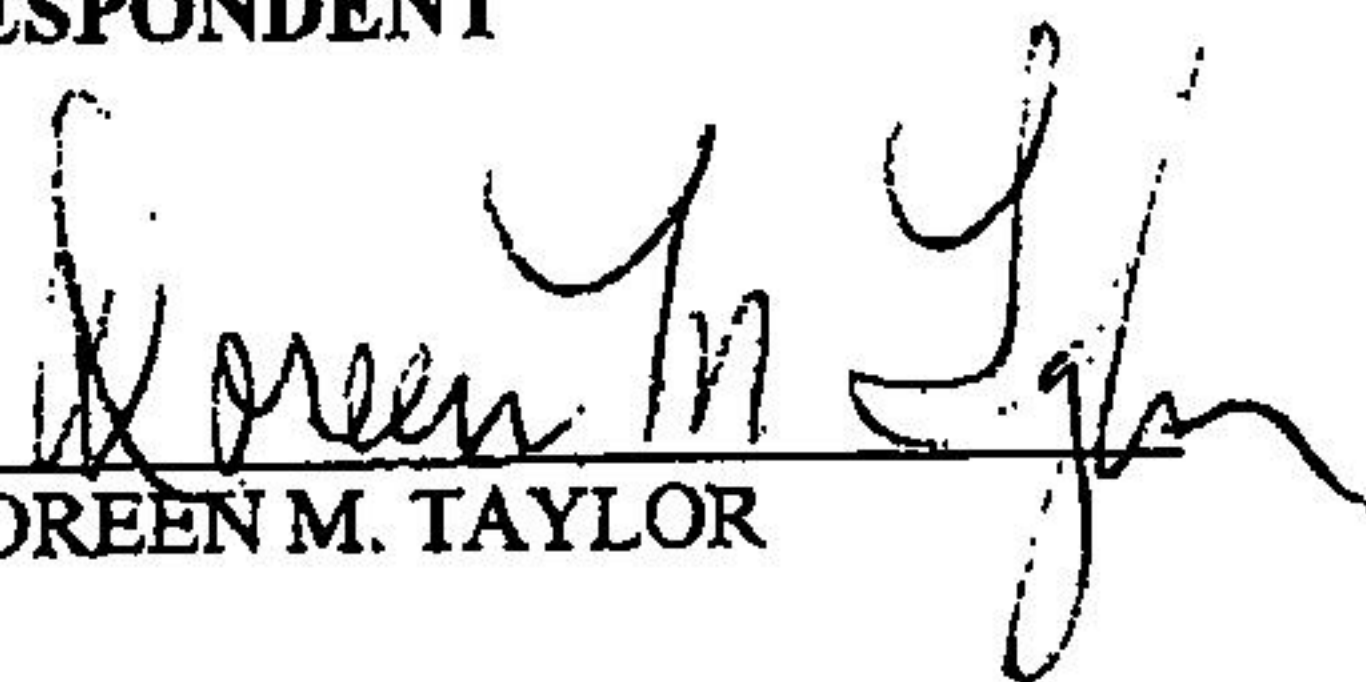
Order. Respondent requests that this Order be accepted by the Board with the same force and effect as an Order entered as a result of a formal disciplinary hearing.

15. Respondent enters into this Stipulation and Order voluntarily and without coercion and after an opportunity to consult with counsel and with full understanding of the legal consequences of this Stipulation and Order and the right to formal hearing on all matters herein.

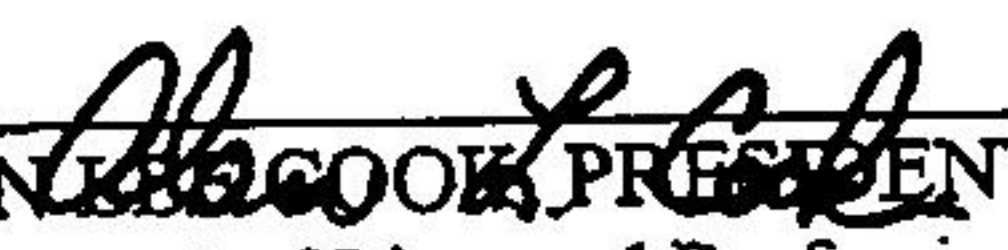
16. This Stipulation and Order shall become an Order of the Board when accepted by the Board and signed by an authorized Board representative.

17. This Stipulation and Order is a public record in the custody of the Board at all times.

RESPONDENT


DOREEN M. TAYLOR

**COLORADO STATE BOARD OF
LICENSED PROFESSIONAL COUNSELOR
EXAMINERS**


ALAN BAGCOCK, PRESIDENT
State Board of Licensed Professional Counselors
Examiners

Effective Date: This 09 day of

May 2007 ~~2006~~